

Make Work Pay: consultation on workplace monitoring technologies

Response from GeoTapp

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About this response

GeoTapp develops a time tracking application for companies whose teams work away from a fixed office, mainly cleaning contractors, security firms, construction and trades, maintenance and installation businesses. The company is based in Italy and is a micro business.

Two things are declared at the outset, because both affect how much weight this response deserves.

The first is that the product is young. It is offered across Europe, the United Kingdom included, and UK businesses have taken it up on trial, but there is no large installed base of British employers standing behind these answers. Where the response describes workplaces, it describes the sector the product is built for and the questions buyers ask before they buy, not a survey. Nothing here should be read as evidence of how common a practice is.

The second is that the product was deliberately built so that it cannot follow a worker through the day. Location is recorded at the moment a shift is opened and at the moment it is closed, the worker sees both of those records, on a map, inside their own app, and nothing is recorded in between. That is a design constraint rather than a setting an administrator can turn up, and the constraint is verifiable without asking us. The Android package requests only fine and coarse location and does not request background location, and there is no foreground location service, so the operating system will not hand the app a position while it is closed. On iOS the app asks only for when-in-use authorisation and stops location updates at the first fix. Any of that can be read from the published app package or from the store privacy label by someone who has never spoken to us, which is exactly the point argued further down this response.

Where the response argues that some uses of WMT are unnecessary, it is arguing against features that competitors sell and we chose not to build, and the consultation should weigh it in that light.

Question 01. Other. A supplier of workplace technology (time tracking for field based teams), which is also a micro employer.

Question 02. Micro (1 to 9 employees).

Question 03. None of the listed regions applies. The company is established in Italy and supplies employers in the United Kingdom.

Question 04. Information and communication.

Question 05. Prefer not to say.

Section 1. Use of WMT (Questions 06 to 20)

Question 06 and 07. The technology this response speaks about is location and time recording tied to the start and end of a shift or a job, with an optional photograph of the completed work attached to the record. The stated purpose is evidence of attendance and of work done, so that an invoice to a client can be supported and hours can be paid correctly. It does no productivity scoring, no behavioural analysis, no inference of emotion or attention, and no continuous location tracking.

Question 08. No decision is automated. The records are read by a supervisor and by the worker, and any consequence follows from a human reading them. The design point worth stating for the consultation is that a record of two timestamps does not lend itself to automated decision making in the first place, because it contains no ranking, no score and no comparison between workers. The risk of automated decision making grows with the granularity of the data collected, which is one reason granularity deserves the government's attention more than the category of technology.

Questions 09 to 15. Not applicable, and that deserves a line rather than a blank. This response does not come from an individual worker, and the company has no workforce subject to WMT, since the technology described here is what we build rather than something used on our own staff. A supplier answering this block would be inventing a workplace.

One observation the block prompts is worth keeping, and it belongs to Question 11. The channels listed there, the privacy notice, the staff handbook, the intranet, signage in the workplace, are office channels. In field based work the people being recorded start the day at a client site, often never enter the employer's premises in a given week, and in cleaning frequently work outside office hours entirely. Guidance or a code that counts an intranet page as information given will be satisfied on paper in precisely the sector where it fails in practice. Whatever standard the government sets, it should ask where the information physically reaches the worker, and the honest answer for this workforce is usually on the same phone that does the clocking in.

Question 16 and 17. The benefits we would call real in this sector are narrow, and worth naming precisely, because the sales material in this market habitually overstates them.

The first is settling disputes about attendance without anyone's word being taken against anyone else's. A cleaning contractor challenged by a client over an unattended site currently defends itself with a supervisor's recollection. A time and location record made at the moment of arrival replaces an argument with a fact, and it protects the worker at least as often as it protects the employer, because it is equally capable of showing that the team did attend.

The second is accurate pay. In field work the dispute is usually not about theft, it is about travel, waiting time and the last twenty minutes of a shift. A record made at the time removes the reconstruction from memory on a Friday afternoon, which is where underpayment and overpayment both come from.

The third is protection for lone workers, where knowing that a shift was opened at a given site has an obvious safety value.

Question 18 and 19. The harms that matter in this sector are also specific.

The first is scope creep, and it is the dominant one. A system introduced to record attendance acquires a live map, then a geofence, then an alert when a vehicle stops for longer than a set number of minutes. Each step

is small, each is sold as an improvement, and the cumulative result is continuous monitoring that no one ever decided to introduce. The government's own principle 5 names this, and the consultation would be right to treat it as the central harm rather than one of a list.

The second is the reuse of monitoring data for purposes it was not introduced for. This is not a hypothetical. On 28 May 2026 the Italian data protection authority fined a public health body (provvedimento n. 382) over vehicle satellite tracking, and two elements of that decision are directly relevant here. The system recorded position every 60 seconds, which the authority found allowed the reconstruction of employees' movements on a substantially continuous basis, and the data so collected was then used in a disciplinary proceeding, which the authority found breached purpose limitation. The lesson for UK policy is that the boundary in practice is not which technology is used but how often it records and what the record is later used for.

The third is the chilling effect on the worker who has done nothing wrong, which is the hardest to evidence and the easiest to underestimate. It is also the harm least addressed by transparency alone, because being told clearly that you are watched all day does not make it feel different.

Question 20. Yes. Time recording in this sector is often introduced to evidence something to a third party rather than to monitor anyone, whether that is hours worked in a dispute, service delivery under a contract, or a record keeping duty. How often, we cannot say, and would treat with suspicion any submission that puts a percentage on it. The point that matters for the consultation is simply that a code or guidance written as though WMT were always introduced for control will not describe the situation a good number of small employers are in.

Section 2. The eight principles (Questions 21 to 30)

Question 21. Not answered as an employer with a representative workforce, since the company is a micro business, and answering the frequency scale would add noise rather than evidence.

Question 22. The two most important are principle 5 (necessity, proportionality and privacy) and principle 1 (purpose and rationale), and they are important in that order.

The reason is practical. Every other principle can be satisfied on paper while the underlying system remains disproportionate. An employer can be transparent about continuous tracking, can consult about continuous tracking, can review continuous tracking annually, and the worker is still tracked continuously. Necessity and proportionality is the only principle that changes what the system does rather than how it is explained. Purpose and rationale ranks second because it is the test that makes the first one enforceable, since proportionality can only be judged against a stated aim.

Question 23 and 24. Adherence would improve outcomes, with one qualification that the consultation should hear from a supplier. Principles applied at the point of introduction tend to be satisfied by documentation, and documentation is exactly what a small employer will outsource to a template. The impact would be considerably greater if the principles bit at the point of procurement, that is, before the employer has bought a system whose capabilities already exceed the stated purpose. Once a product with a live map is installed, proportionality becomes a promise not to use a feature, and promises of that kind decay with staff turnover.

Question 25 and 26. The principles accurately reflect good practice, but one element of good practice is missing, and it is the recommendation this response most wants to put on the record.

Nothing in the eight principles addresses what the technology is capable of, as distinct from how the employer intends to use it. A duty that attaches only to employer conduct places the whole burden on the party with the least technical knowledge, and leaves the supplier, who made every design decision that matters, outside the frame entirely. A ninth principle, or an addition to principle 1, should state that employers ought to prefer systems whose capabilities are limited to the stated purpose, and that suppliers should disclose in plain terms what their product records, at what frequency, what it retains and for how long, and what it is technically incapable of doing.

Capability disclosure is checkable in a way that intention is not. An employer can tell a tribunal what it meant to do. A product either can produce a minute by minute location history or it cannot, and that fact does not change with management.

Question 27. The main challenge for small employers is that the market does not offer them an informed choice. Products are sold on the breadth of what they can see, and the buyer, typically an owner with no data protection function, has no straightforward way to compare two systems on intrusiveness. The second challenge is that responsibility for the introduction of WMT in very small firms falls to one person who is also doing the operational job, and any process designed around an HR function will not be followed as intended.

Question 28 and 29. Meaningful engagement in a small field based workforce does not look like a formal consultation exercise, and pretending otherwise would produce paperwork instead of voice. It looks like showing the team the actual screen the record produces, before rollout, including what the supervisor sees, and letting them ask what happens between the two timestamps. The design choice we made for that reason is that the worker sees their own record, at the moment it is made, on their own device, because a record a worker can inspect is one they can also dispute. Where a system cannot show the worker what it holds on them, engagement is a briefing rather than a dialogue.

Question 30. No, not in a form worth putting in front of a consultation. Impressions from sales conversations could be offered, but this response argues against exactly that kind of evidence when other people submit it, and it will not make an exception for its own.

Section 3. The three options (Questions 31 to 67)

Option A, a statutory code of practice (Questions 31 to 39)

Question 31. Yes.

Question 32 and 33. The impact on industrial relations would be positive and modest. The value of a code is that it gives a small employer a defensible reference point when introducing technology, and gives a worker a standard to point at. The limitation identified in the consultation document is real, in that the effect depends on a tribunal claim already existing, but the deterrent effect of a written standard in a market where none exists should not be underestimated. Suppliers write their sales material against whatever standard is quotable.

Question 34 and 35. Adoption would probably increase rather than decrease, and this is worth saying plainly because the opposite is often assumed. A significant brake on adoption of time recording in this sector is the employer's fear of being accused of surveillance by their own team. A code that distinguishes recording from surveillance gives that employer something to show, which makes the responsible product easier to buy.

Question 36. The main risk is that the code is drafted at a level of generality that treats a two timestamp attendance record and a continuous behavioural monitoring platform as the same thing. If it does, it will be ignored by the employers using the former and it will not restrain the vendors selling the latter. The code should be organised by intensity of monitoring, not by technology category, because technology categories are obsolete within two years and intensity is not.

Question 37. The main purpose should be to translate existing data protection and employment law obligations into decisions an employer actually faces, in the order they face them, with the procurement decision first.

Question 38. Yes. Without a TULRCA s207A style consequence, the code will be read by the employers who were already going to behave well.

Question 39. Yes. A statutory code operating at principles level, supplemented by guidance that can be updated as products change, is the right split. The guidance is where capability disclosure and worked examples belong.

Option B, a duty to consult (Questions 40 to 56)

Question 40 and 41. Qualified yes. A duty to consult and inform before introducing WMT would improve outcomes for structural, continuous monitoring. Applied uniformly to every form of workplace technology it would be disproportionate for the smallest employers and would be met with a template.

Question 42 and 43. Somewhat positive, and less positive than it looks on paper. A duty to consult turns a decision that is currently taken silently into one that has to be explained, and explaining it is where most of the improvement comes from. The reservation is that a duty produces a process, and a process can be completed without a single mind being changed. In workplaces without union representation, which is most of this sector, the risk is a consultation whose outcome was written before it opened. That is not a reason against the duty, it is a reason to attach the duty to a written response to the concerns raised, which Question 51 comes back to.

Question 44. For micro and small employers the risk is that a consultation duty attached to any time recording system becomes a reason not to introduce one, leaving handwritten sheets in place. That outcome is worse for workers, not better, because a handwritten sheet is the easiest record in the world to alter after the fact and the worker holds no copy of it.

Question 45. The benefit is that consultation happens before purchase rather than after installation, which is the only moment at which anything can still be changed cheaply. Once a system is bought, configured and paid for, consultation becomes a conversation about a fact.

The costs are real and fall unevenly. A large employer absorbs a consultation process inside an existing HR function. A firm of eight people absorbs it out of the owner's evenings, and the owner is also the person driving a van during the day. The practical risk that follows is not non compliance, it is avoidance: the

employer keeps the paper timesheet, which involves no technology, triggers no duty, and gives the worker no copy of anything.

The other risk worth naming is scope. If the duty reads as covering any technology that produces data about work, it will be read by small employers as covering their accounting software, and a duty that is understood as absurd is not followed selectively, it is ignored entirely.

Question 46 and 48. The proportionate model is trigger based. The duty should attach to the introduction of, or a material change to, monitoring that is continuous, that infers something about the worker rather than recording an event, or that feeds automated or semi automated decisions. Recording discrete events, such as the start and end of a shift, with the record visible to the worker, should carry an information duty rather than a full consultation duty.

Question 47. A model built on the capability of the system is the only one that stays accurate as products change. Categories age badly. Five years ago driver facing cameras were the frontier and today they are a line item, while the features that would have seemed far fetched then are shipping as defaults now. A duty written around what a system does, records an event or follows a person, infers something or does not, feeds a decision or does not, will still be readable when the product names have all changed. A duty written around a list of technologies will need amending before it is enforced.

Question 49. Yes, time limited, with a defined period after which the employer may proceed having documented the responses received. An open ended process in a firm of six people means the process never completes.

Question 50. Yes, and the trigger for the further process should be a change in capability rather than a change of policy. Turning on a live map, shortening a recording interval, adding a geofence alert or feeding the data into any kind of scoring are all changes that alter what the system can see, and each is typically presented internally as a settings change rather than a new system. That is precisely how scope creep happens without anyone deciding on it. A change in supplier, or a supplier's own update that adds a monitoring capability, should count the same way.

Question 51. Employer may proceed only after providing a written response to the concerns raised, and, where the monitoring in question is continuous or feeds decisions about individuals, after pausing to set out alternative proposals. Two reasons for stopping short of a veto. A veto concentrates the argument on the decision rather than on the design, and the useful outcome of these conversations is almost never yes or no, it is a narrower version of the same system. And a veto in a workplace with no union presence, which describes most of this sector, would in practice be exercised by nobody. A written response, on the other hand, forces the employer to articulate why a less intrusive option was rejected, which is the same test principle 5 sets and the one an authority will apply afterwards anyway.

Question 52. Any duty should be defined by what the technology does, not by the size of the employer alone. A micro employer running continuous location tracking should be inside the duty. A large employer recording two timestamps should not face the same process as one deploying behavioural analytics.

Question 53. Coverage by employer size alone would put the duty in the wrong place. The intensity of monitoring in this sector does not track headcount: some of the most granular tracking we see specified is specified by very small firms, often because a supplier sold the top of the range package to a buyer with nobody to advise them. Meanwhile a small firm recording two timestamps would be caught by a size based

rule for doing the least intrusive thing on the market. Definition by capability catches the first case and releases the second, and it is also the definition an employer can apply to itself without legal advice, which matters when the employer is one person.

Question 54 and 55. Enforcement should be available where monitoring was introduced without the required process and was then relied on in a decision adverse to a worker. That combination, process failure plus reliance in a decision, is the point at which harm becomes concrete, and it mirrors the reasoning applied by the Italian authority in the decision cited above.

Question 56. The remedy that changes behaviour is exclusion, not compensation. If data gathered from monitoring introduced without the required process cannot be relied on in a disciplinary or dismissal decision, every employer has a reason to run the process properly at the outset, and the reason is one they will feel on the day they most want the evidence. That is the mechanism at work in the Italian decision this response cites, where the data was collected outside the stated purpose and its later use in a disciplinary proceeding was itself the breach. Financial penalties alone tend to be absorbed as a cost by the organisations best able to pay them.

On the machinery, enforcement is better attached to existing employment tribunal routes than built new. A separate regime would take years to be understood and would sit awkwardly beside the Information Commissioner's jurisdiction over the same facts. The ordinary route, with the code relevant to the tribunal's assessment, reaches the same place without a new institution.

Option C, non-statutory guidance (Questions 57 to 67)

Question 57 and 58. Yes, but only alongside Option A rather than instead of it. Guidance alone reaches the employers who go looking for it.

Question 59 and 60. No impact, or somewhat positive at best. Guidance changes the behaviour of organisations that go looking for it, and an employer already searching for how to introduce monitoring responsibly is not the one whose conduct is causing disputes. Where guidance does help industrial relations is as a shared reference in a conversation that has already started, since it gives a worker or a representative something to point at that is not simply their own opinion against the employer's.

Question 61 and 62. Somewhat increased adoption. The brake on adoption of time recording in this sector is not regulation, it is the employer's fear of being told by their own team that they are installing surveillance, and that fear is well founded because a great deal of what is sold is exactly that. Guidance that draws the line clearly lets an employer point to the responsible side of it, and makes the narrower product easier to choose. This is the same reasoning as Question 34, and it applies more weakly here, because guidance nobody is obliged to read persuades nobody who was not already listening.

Question 63. The benefit is speed and the ability to keep up: guidance can be updated when a product category shifts, which a statutory instrument cannot. The cost is that it carries no weight where it is most needed. The practical risk is a two document framework, a code that says the principles and guidance that says what they mean, with the reader unsure which one binds them. If both are produced, one of them should be plainly labelled as the one to read first, and for a small employer that should be the practical one.

Question 64. The guidance should contain, at minimum, a plain description of the difference between recording an event and monitoring a person, worked examples drawn from field based sectors rather than

only from office settings, a short list of questions an employer should ask a supplier before purchase, and a statement that data collected for one purpose is not available for another.

Question 65. Primarily at employers, and specifically at small employers without an HR or data protection function, since larger organisations already have access to advice. A second audience should be suppliers, who currently receive no guidance at all.

Question 66. Guidance is used in this sector when it arrives at the moment of a decision. In practice that means at the point of purchase. A supplier facing a customer question drawn from government guidance will answer it, and that mechanism does more work than a document downloaded by an employer who was already careful.

Question 67. Yes. Two additions the government should consider, neither of which appears in the three options.

The first is a supplier facing measure, as described under Question 26. Capability disclosure in plain language, published by the supplier, would let an employer compare two products on intrusiveness in the way they can already compare them on price.

The second concerns the evidence base itself, and it is offered as a caution. The commercial literature in this market rests on a small number of statistics that cannot be traced to any primary study. The most widely quoted, that time theft costs employers between 450 and 550 billion dollars a year, commonly attributed to a payroll association, is in fact a Gallup estimate published on 11 June 2013 in its State of the American Workplace research, where it refers to lost productivity attributed to actively disengaged employees. It is not a measurement of time theft and it does not come from the body it is usually credited to. Similar figures on buddy punching circulate with no locatable source. Since these numbers are the principal justification offered to employers for intensive monitoring, the government should be careful not to inherit them through submissions from the industry, this one included, without asking for the primary source.

Question 68. Any other points

One point, and it is the reason this response was written at all.

The debate about workplace monitoring is conducted almost entirely in terms of what employers should be allowed to do. Very little of it addresses what the products are built to be able to do, even though every meaningful limit is decided at that stage, by people the worker never meets and the employer never questions. By the time an employer is deciding whether to use a live map responsibly, someone else has already decided that a live map exists, is on by default and is the headline feature of the sales page.

Policy that reaches only the employer will always arrive after that decision. Policy that reaches the supplier, even lightly, through disclosure obligations and through guidance that tells employers what to ask before they buy, would move the market rather than only the paperwork. There is a commercial interest in saying so, since it favours products built the way ours is built, and the consultation is entitled to discount it accordingly. The argument stands on its own regardless, which is that a limit you cannot exceed is worth more than a limit you have promised not to exceed.

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